

23STCV19802 23STCV19802

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F28%2F2026

Source SHA-256: 1b3a82ac5b3b34925bb4ad3a4df7ea85a9e35f13d56bbd3ecbee0bf045f4031f

Case Number: 23STCV19802 Hearing Date: July 28, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

VINCENT BOWMAN,

Plaintiff,

vs.

BALDWIN HILLS MULTIFAMILY LLC,

et

al.,

Defendants.

Case No.:

23STCV19802

Hearing Date:

July 28, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF VINCENT BOWMAN'S MOTION FOR PROTECTIVE ORDER AGAINST
DEFENDANTS AND THEIR REQUESTS FOR SPECIAL INTERROGATORIES SETS ONE AND TWO,
FORM INTERROGATORIES SETS ONE AND TWO, REQUESTS FOR PRODUCTION OF DOCUMENTS
SETS ONE AND TWO, ADMISSIONS SET ONE AND MONETARY SANCTIONS

AND RELATED CROSS-ACTIONS

Background

Plaintiff Vincent Bowman ("Plaintiff") filed a complaint on August 18,
2023 against Defendants Baldwin Hills Multifamily LLC and WinnResidential (jointly,
"Defendants"), alleging one cause of action for breach of contract.

On October 10, 2023, WinnResidential California, L.P. erroneously sued
and served as WinnResidential, filed a cross-complaint against Plaintiff,
alleging seven causes of action for (1) slander, (2) intentional interference
with business relations, (3) negligent interference with business relations, (4)
conversion, (5) implied indemnity, (6) contribution, and (7) declaratory relief.

On October 13, 2023, Baldwin Hills Multifamily, LLC filed a
cross-complaint against Plaintiff, alleging eight causes of action for (1)
slander, (2) intentional interference with business relations, (3) negligent
interference with business relations, (4) conversion, (5) negligence, (6)
implied indemnity, (7) contribution, and (8) declaratory relief.

Plaintiff now moves for a protective order against Defendants and their
requests for Special Interrogatories, Set Nos. 1 and 2; Form Interrogatories, Set
Nos. 1 and 2; Requests for Production of Documents, Set Nos. 1 and 2; Admissions,
Set No. 1; and for monetary sanctions. Defendants oppose. Plaintiff did not
reply.

Discussion

Plaintiff asserts that a protective

order and monetary sanctions are warranted against Defendants because “Defendants have weaponized the discovery procedure against Plaintiff acting in Pro Per to foster undue burden and expense and, in many parts of the discovery, has nothing to do with this case and not filed the required motion to submit more than the allotted number of discoveries.” (Notice of Mot., 2:2-5.)

Under Code of Civil Procedure

section 2031.060, subdivision (a), “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order.” “The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2031.060, subd. (a).)

The entirety of Plaintiff’s motion

asserts that “[i]n Defendants Requests For Special Interrogatories Sets One and Two Defendants are requesting information that they already have and/or have nothing to do with the case. E.g., Defendants’ Special Interrogatories Set One No. 1: Please state the dates of YOUR tenancy at the SUBJECT PROPERTY ... Defendants have this information. It’s found in the lease. And, Defendants’ Special Interrogatories Set One No. 2: Please state if anybody was living with YOU at the SUBJECT PROPERTY during YOUR tenancy. This question is not relevant to this case. And the next 2 questions are related to Defendants’ Special Interrogatories Set One No. 2. Ergo, they are not relevant to this case. And there are many other discoveries requested by Defendants that are not relevant to this case. It is obvious that Defendant doesn’t seek discovery but whose intent is to harass, burden, intimidate. and try to take advantage of Plaintiff acting in Pro Per.” (Mot., 3:7-20.) Plaintiff’s declaration in support states that Exhibit A includes the “discoveries from Defendant.” (Bowman Decl., ¶ 3.)

Defendants’ opposition contends that

first, “Plaintiff and Cross-Defendant Bowman provides no statutory authority, case law, or legal basis to justify the filing of this Motion. Accordingly, The Motion is wholly unsupported and should be denied.” (Opp., 3:1-3.)

Based on the foregoing, the Court finds that Plaintiff failed to demonstrate good cause warranting a protective order. Plaintiff provides no legal basis for his request. Plaintiff’s assertion that the requested discovery

has “nothing to do with the case” is without merit, as Plaintiff’s complaint arises from issues at the apartment in which he resides. (See Compl., 1:18-20.)

Additionally, Defendants assert that “the motion is contrary to the Court’s order arising out of the May 26, 2026, Informal Discovery Conference. The Court ordered Plaintiff to serve verified responses to the very discovery with respect to which he now seeks a Protective Order and Defendants to send a courier to pick up the responses at 1:00 p.m. today. Defendants sent a courier as directed. No one answered the door at 1:00 p.m. at Plaintiffs house... In contrast, Defendants have complied with the Court’s Orders... As Plaintiff provided no valid grounds for relief and as the Court has already directed responses be served, the Motion should be denied.” (Opp., 3:4-21.)

The Court notes that per the minute order from the IDC on May 28, 2026, “[t]he parties agree[d] and the Court ordered ... [that] [o]n or before July 13, 2026, Plaintiff will serve Verified Supplemental Responses to Defendant’s Set One Form Interrogatories, Special Interrogatories, Requests for Production, Requests for Admissions, Set Two Form Interrogatories, Special Interrogatories, and Requests for Production.” (Minute Order 5/28/26.) Pursuant to the parties’ IDC, Plaintiff appeared to be willing to comply with the discovery request. Although Defendants assert that Plaintiff’s motion is contrary to the May 28, 2026 IDC, the instant motion was filed on October 13, 2025, well in advance of when the IDC occurred.

Defendants also assert that Plaintiff “made no effort to meet and confer as required under California Code, Code of Civil Procedure § 2016.040 on the subject written discovery prior to filing the instant motion,” nor did he “serve the Motion for Protective Order on Opposing Parties, and Defendants/ Cross-Complainants had to pull the Motion from the Court’s website.” (Opp., 3:25-4:1.)

As Defendants point out, pursuant to Code of Civil Procedure section 2016.040, subdivision (a), “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” There is no evidence Plaintiff complied, because Plaintiff’s declaration does not discuss his meet and confer efforts. However, from the Minute Order for the May 28, 2026 IDC, it appears that the parties discussed the protective order and/or the underlying issues in the protective order. Department 508’s courtroom information

necessitates a meet and confer with the Court in the form of an IDC before the Court hears a discovery motion. Although Plaintiff did not initiate an informal meet and confer, the parties met and conferred with the Court at the IDC on the matter. Additionally, under California Rules of Court rule 3.1300(a), "all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service." Code of Civil Procedure section 1005, subdivision (b), requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Plaintiff's failure to serve the moving papers on Defendants makes the motion procedurally improper. Not only is the motion denied for lack of good cause, but it is denied for being procedurally improper.

Plaintiff also requests that "the court award sanctions of \$1000." (Bowman Decl., ¶ 5.) However, given the outcome of the instant motion, the Court declines to impose sanctions.

Defendants also seek sanctions. They contend that Plaintiff's "Motion is without justification and ought [to] be denied. The Motion was brought without substantial justification and solely with intent to cause undue delay. By this Motion, Plaintiff seeks to evade the Court's Order of May 28, 2026, and cause yet more needless delay and expense. Additionally, the Court expressly advised Plaintiff on May 28, 2026, that any discovery-related disputes should be addresse[d] through the informal discovery conference rather than by filing a Motion for Protective Order as it is procedurally incorrect. Accordingly, Plaintiffs and Cross-Defendant's misuse of discovery reasonably requires the Court to consider sanctions against him under CCP Section 2023.030." (Opp., 4:5-13.)

The Court recognizes that Plaintiff did not demonstrate good cause for his motion for a protective order. However, the Court declines to impose sanctions at this time because it does not appear that Plaintiff is willfully and intentionally attempting to misuse the discovery process.

Conclusion

Based on the foregoing, Plaintiff's motion for a protective order is DENIED. Plaintiff's request for sanctions is DENIED. Defendants' request for sanctions is DENIED.

Plaintiff is ordered to give notice of this Order.

DATED: July 28, 2026

Hon.

Teresa A. Beaudet

Judge,

Los Angeles Superior Court